

the imposition of Monetary Sanctions and may result in the issuance of an Order to Show Cause Re: Removal of the Personal Representative. **No appearance is necessary on today's calendar.**

ESTATE OF VIRGINIA WALTERS

CASE NUMBER: 25PB-0032987

This matter is on calendar for hearing on the Administrator's Request for Clarification and Objection for Need to Amend Waiver of Accounting and Petition for Final Distribution. The Waiver of Accounting and Petition for Final Distribution was previously continued for several reasons. The trustee of the trust had not been previously identified throughout these proceedings. The request identifies a separate case where Petitioner, Kathleen Walters, was acknowledged as trustee of the William C. Walters and Virginia M. Walters. This information was not included in the Petition for Final Distribution as required. The Court finds that the identity of the trustee has been clarified.

The request indicates confusion based on that separate case regarding ownership of the subject real property. The prior case found that the real property was not a trust asset but was owned by William and Virginia Walters. The present case seeks to probate the will of Virginia Walters, which disposes of the remainder of the decedent's property not included in the trust. This property includes the subject real property. The will purports to devise the entirety of the estate to the trustee of the William C. Walters and Virginia M. Walters Revocable Trust. As a result, the trustee is the only individual entitled to distribution. Therefore, the assignments of interest and waiver of accountings are without effect. Only the trustee of the trust can waive the requirement of an accounting. Considering Petitioner is also the trustee, the Court will find the requirement of a final accounting waived. The Court will also find the acknowledgement under Local Rule 15.10(L) satisfied by the request.

Additionally, the Court previously noted that the Petition failed to address whether notice to the Franchise Tax Board had been provided as required by Probate Code Section 9202(c). Item 8 of the Petition states that notice to the Franchise Tax Board is not required, however this notice provision is mandatory. The request advises that the Franchise Tax Board was given notice, however it is unclear when this notice was provided and whether the requisite time for filing a claim has lapsed. An amended Petition is still required to address the issues regarding the proposed distribution. The Request and Objection is **DENIED**, to the extent that it requests to dispense with the need to file and serve an amended Petition for Final Distribution. The Court notes the future date of September 21, 2026, for further proceedings on the Waiver of Account and Petition for Final Distribution. If that date does not provide Petitioner sufficient time to correct the documents, Petitioner must appear to request a different date. **No appearance is necessary on today's calendar.**

ESTATE OF NANCY WARD

CASE NUMBER: CVPB17-0029140

This matter is on calendar for Status of Administration. This matter continues to trail the related trust matter, case 29247. **An appearance is necessary on today's calendar.**